

AFFIDAVIT OF DOCUMENTS

AFFIDAVIT OF ANDY PHO

IN THE MAGISTRATES' COURT
OF VICTORIA
AT MELBOURNE

Court Number MAG-CI-250020050

BETWEEN

GURPREET SINGH SAHANSRA

OF 8 Nevis Place TRUGANINA, VIC, 3029 AUS

Plaintiff

and

ANDY PHO

OF 16 Langham Street, AVONDALE HEIGHTS VIC 3034 AUS

First Defendant

and

DIESEL PERRY

OF 126 Seventh Avenue, ALTONA NORTH, VIC 3025 AUS

Second Defendant

Date of document: 11 April 2025
Filed on behalf of: First Defendant
Prepared by:

Hall & Wilcox

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Attention: Claire Leftis

Email: Claire.Leftis@hallandwilcox.com.au

I, Andy Pho, the abovenamed First Defendant, make oath / affirm and say as follows:

- 1 I have in my possession, custody or power, the documents enumerated in Schedule 1 which are required to be discovered.
- 2 The documents enumerated in Part 2 of Schedule 1 are privileged, and I object to produce them. The documents are privileged on the ground as appears from their description.
- 3 I have had, but no longer have, in my possession, custody or power, the documents enumerated in Schedule 2 which are required to be discovered.
- 4 To the best of my knowledge, information and belief neither I nor my Australian lawyer nor any other person on my behalf has now, or ever had, in my or his, her or its possession, custody or power, any document required to be discovered, other than the documents enumerated in the said Schedules 1 and 2.

SCHEDULE 1

Part 1

Number	Date	Description
1.	Various	Correspondence common to the parties.
2.	Various	Court documents common to the parties.
3.	Various	Bundle of screenshots from various hire car providers showing comparative hire car rates.
4.	Undated	Bundle of photographs of the Plaintiff's vehicle.
5.	Undated	Bundle of photographs of the First Defendant's vehicle.
6.	20 March 2024	Copy of rental agreement between US Rental and Plaintiff for Plaintiff's hire car.
7.	5 June 2024	Copy of draft invoice from M.B Smash Repair for Plaintiff's vehicle.
8.	5 June 2024	Copy of tax invoice from US Rental for Plaintiff's hire car.
9.	3 July 2024	Copy of tax invoice from US Rental for Plaintiff's hire car.

Part 2

Number	Date	Description
1.	Various	Professional communications of a confidential nature between myself and my solicitors and counsel for the purpose of obtaining or giving legal advice and assistance.
2.	Various	Confidential communications between myself or my solicitors and third persons for the purposes of obtaining and furnishing to my solicitors' evidence and information as to evidence which will be obtained and otherwise for the use of the solicitors to enable them to conduct this proceeding and to advise.
3.	Various	Documents prepared by my solicitors and counsel after this action was threatened or anticipated.

SCHEDULE 2

Number	Date	Description
4.	Various	The original of all copy documents listed in Part 1 of Schedule 1.

The contents of this affidavit are true and correct and I make it knowing that a person making a false affidavit may be prosecuted for the offence of perjury.

*Sworn/*Affirmed at
[place]
in the State of Victoria
on [date]

Before:

}

Andy Pho

[Signed by person]

authorised under section 19(1) of the **Oaths and Affirmations Act 2018** to take an affidavit.

[Name and address in legible writing, typing or stamp]

This affidavit was signed and sworn/affirmed by the deponent by audio visual link and this electronic copy of the affidavit and not the original was used by me to complete the jurat requirements.